



JOHNSTONE SUPPLY

Rochester: 95 Halstead Street, 14610
Toll Free: (800) 724-8806
Tel: (585) 482-8000 • Fax: (585) 482-6000
eMail: store141@johnstonesupply.com

Syracuse: 835 Canal Street, 13210
Toll Free: (877) 724-8806
Tel: (315) 479-8800 • Fax: (315) 479-8600
eMail: store269@johnstonesupply.com

Order on-line at www.JohnstoneSupply.com/141

NEW HIRE CHECKLIST

Employee Name: Jaime Burgos
Hire Date: 10/4/2021

Employee ID #: 836

1. For Accounting to do prior to New Hire starting:

- ✓ Set up Computer Profile, Windows Login
- ✓ Set up Microsoft Office 365 (email, calendar, skype, intranet services)
- ✓ Set up Inform-ERP System
- ✓ Set up Johnstone Employee Network (JEN/JXI)
- ✓ Set up Voicemail (Extension)
- ✓ Add to Phone List
- ✓ Set up as User in Address Book in Copiers & Printers
- ✓ Set up in Johnstone University- JU Online
- ✓ Set up Johnstone Email
- ✓ Set up Building Access & Alarm Code

2. For HR to do with New Hire - complete the following items during orientation:

- ✓ Sign Offer Letter
- ✓ Application
- ✓ Sign Job Description
- ✓ New Hire Form/Employee Information Form
- ✓ Pay Rate Acknowledgement-2 copies
- ✓ W4 Tax Withholding Form
- ✓ IT-2104 Employee's Withholding Allowance Certificate
- ✓ Post-Offer Self-Identification Form
- ✓ I-9 Eligibility Form
- ✓ Direct Deposit Form
- ✓ Benefits Overview
- ✓ Receipt of Handbook
- ✓ Receipt of Non-Harassment Policy
- ✓ Receipt of Sexual Harassment Prevention Policy & Complaint Form
- ✓ Receipt of Smoking Policy non smoker
- ✓ Receipt of Confidentiality Policy
- ✓ Authorization to Deduct Expenses



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- ✓ Employee Account Information

3. HR will hand Employee during orientation:

- ✓ Employee Handbook
- ✓ Copy of Benefits Overview
- ✓ New Health Insurance Marketplace Coverage
- ✓ COBRA General Notice
- ✓ Allworx Voicemail Greetings Setup Guide
- ✓ Payroll Schedules
- ✓ Copy of Pay Rate Acknowledgement Form
- ✓ Copy of Job Description
- ✓ Copy of Offer Letter

4. HR to do Training during New Hire's orientation:

- ✓ Sexual Harassment Prevention Training

5. For HR to do on New Hire's first day after orientation is complete:

- ✓ Set up in Payroll and Time & Attendance
- ✓ Add to Org Chart
- ✓ Scan New Hire paperwork and Save to Online Employee File
- ✓ Create Personnel, Medical & Payroll files & Labels for New Hire paperwork
- ✓ File Form I-9 in Active Forms I-9 Folder
- ✓ File Background Check forms and information in the Background Check File
- ✓ Add Employee to Payroll File and Commission/Bonus File online



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September 9, 2021

Jaime Burgos
46 Coleman Avenue
Spencerport, NY 14559

Dear Jaime:

I am pleased to offer you the position of Warehouse Supervisor for Johnstone Supply of Central NY. This letter is to confirm my offer and your acceptance of the position. You will be reporting directly to me as Branch Manager. Your tentative start date is scheduled for Monday, October 4, 2021.

This is a full-time, [exempt position that is not eligible for overtime pay. We are offering you a starting base wage of \$2,500.00 paid biweekly according to Johnstone Supply of Central NY's payroll practices.

Upon the successful completion of your 90-day probationary period you will become eligible for several employment benefits as outlined on the accompanying Benefits Overview.

This job offer is contingent upon the following:

- Satisfactory reference checks.
- Completion of a satisfactory background check.
- Motor vehicle check/MVR.

On your first day, you will be given an orientation by Human Resources. This orientation will include completing employment forms, reviewing fringe benefits, introduction to management and touring the premises. Please bring appropriate documentation for the completion of your new-hire forms, including proof that you are presently eligible to work in the United States for I-9 Form purposes. Failure to provide appropriate documentation within three days of hire will result in immediate termination of employment in accordance with the terms of the Immigration Reform and Control Act.

Please indicate your acceptance of our offer by signing below and returning one copy of the letter, with your original signature, to me no later than Monday, September 13, 2021. We would appreciate having your decision as soon as possible, but please feel free to talk to me further if you have any questions.

Jaime, I am confident that you have the skills, enthusiasm, and talent to be successful in this challenging position. I look forward to having you on my team.

Welcome to JOHNSTONE SUPPLY!

Sincerely,

Stephen Short
Branch Manager



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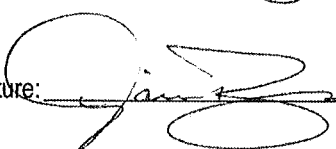
Attachments: Job Description, Benefits Overview, Driver Information Request, List of Acceptable Documents for Form I-9, Background Authorization

I have read and understood the provisions of this offer of employment, and I accept the above conditional job offer. I understand that my employment with Johnstone Supply of Central NY is considered at will, meaning that either the company or I may terminate this employment relationship at any time with or without cause or notice.

This offer shall remain open until Monday, September 13, 2021. Any acceptance postmarked after this date will be considered invalid.

Date: 9-9-2021

Print Name: Jaime Burgos

Signature: 



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JOB DESCRIPTION

Job Title: **Warehouse Supervisor**
FLSA Status: Full-Time
Reports To: Branch Manager

Position Summary:

Working with the direction of the Branch Manager, the warehouse supervisor is responsible for managing the warehouse staff and all aspects of shipping and receiving and performing general warehouse maintenance and deliveries.

Subordinate Summary:

Manages warehouse staff.

Essential Job Results and Responsibilities:

Supervisory Duties:

1. Assists Branch Manager with hiring and training of new employees.
2. Schedules and oversees warehouse staff.
3. Along with Branch Manager, conducts performance evaluations that are timely and constructive.

Core Duties and Responsibilities

1. Oversee all aspects of warehouse operations including but not limited to stocking, shipping and receiving.
 - a. Ensure all merchandise in warehouse and showroom is accurately and thoroughly accounted for, properly labeled, and in its appropriate location(s).
 - b. Ensure timely, accurate, and efficient handling of incoming shipments.
 - c. Ensure timely, accurate, and efficient handling of outgoing shipments.
 - d. Stage customer backorders for will-call pickups or company delivery.
 - e. Fill customer orders in accordance with pick tickets, complete appropriate paperwork, and place a copy with the merchandise for shipment.
 - f. Process returned good authorizations for products received from suppliers according to company procedures.
 - g. Assist branch management with the handling of all warranty/freight claims and related product issues in a timely and cost efficient manner.
2. Load delivery vehicle(s), drive and unload at customer locations
3. Develop and Implement new programs to reduce shipping, warehousing costs or to increase handling efficiency and productivity.
4. Maintain a neat and orderly workplace at all times to include moving pallets, sweeping, and mopping removing/disposing of debris.
5. Maintain on a consistent and ongoing basis a clean, tidy and safe facility in conformance

Job Description- Warehouse Supervisor

- with all OSHA, HAZMAT, and management standards.
6. Assist sales efforts on an as needed basis including but not limited to assisting in-store customers, filling customer orders, delivery to customers, and answering telephones.
 7. Assist management in its decision making when appropriate, practical, or required to run the business.
 8. Other duties as many be assigned.

Customer Service Results and Responsibilities

1. Assist sales efforts on an as needed basis including but not limited to assisting in-store customers, filling customer orders, delivery to customers, and answering telephones.
2. Answers incoming telephone calls and emails and greets customers who walk in the store. Handles multiple customers and customer requests simultaneously while maintaining a friendly and professional manner.
3. Assists customers in making product selections by asking questions and actively listening to identify customer needs. Assists with system or product troubleshooting and answering technical questions. Identifies alternate or substitute products to meet customer needs.
4. Assists customers with the use of Johnstone Supply e-commerce and mobile application questions.
5. Researches and sources product for customers using a variety of tools, including point-of-sale computer system, catalogs, websites, JXI, and industry and store contacts.
6. Enters sales orders into point-of-sale computer system for invoicing or cash payments. Processes customer returns and warranties following company guidelines.
7. Follows up promptly on all customer requests for information, quotes, alternative parts and delivery dates. Proactively communicates with customers about any expected delays or issues with their order.
8. Develops good working relationships and rapport with customers. Greets regular customers by name.
9. Maintains the highest standards in cleanliness and appearance of the showroom through stocking shelves, housekeeping, creating displays, etc.
10. Resolves customer complaints and disputes in a timely, professional manner that balances customer requests with business needs.
11. Follows company pricing and credit guidelines.

General Results Responsibilities

1. Maintains knowledge of new and existing products and inventory by participating in training, studying Johnstone and industry catalogs and web sites, and seeking knowledge from experienced staff members and factory representatives.
2. Is organized and orderly, and capable of maintaining appropriate records.
3. Completes all transactions and necessary paperwork accurately and in a timely manner.
4. May represent Johnstone Supply at trade associations, events and local chapters.

Johnstone Supply believes that each employee's contribution should not be limited by the assigned responsibilities. Therefore, it is expected that each employee will offer his/her services wherever and whenever necessary to ensure the success of our endeavors.

Qualifications:

To perform this job successfully, an individual must be able to perform each essential job function satisfactorily. The requirements listed below are representative of the knowledge, skills, and/or abilities required. Reasonable accommodations may be made to enable individuals with disabilities to perform the essential functions.

Job Description- Warehouse Supervisor

Education and Experience:

- Required: High School Diploma or G.E.D and minimum of two years related experience and/or training in the HVAC/R industry; *OR* equivalent combination of education and experience.
- Preferred: The above plus 2 years experience with a wholesale HVAC/R or similar industry.
- Minimum 4 years' experience supervising warehouse staff.

Job-Specific Knowledge, Skills & Abilities

- Ability to provide consistent, professional customer service.
- Ability to multi-task and maintain focus while prioritizing the needs of several customers at once.
- Problem-solving skills: listening to, interpreting, and meeting the needs of others; diagnosing and rectifying problems that will often require attention to detail.
- Demonstrated understanding and application of effective sales strategies and techniques.
- Ability to maintain a positive, courteous, and friendly demeanor.
- General knowledge of HVAC/R products, concepts and the industry as a whole.
- Skill in proactively communicating (both verbal and written) to establish mutual respect and understanding.
- Math skills, including ability to: add, subtract, multiply, divide; and calculate margins, discounts and percentages.
- Skill in using point-of-sale computer systems to locate information and process transactions.
- Skill in using web-based tools to research product and information.
- Ability to work productively in teams with a wide range of people.
- Ability to work independently with minimal direction.
- Ability to follow written instructions and documented procedures.

Expected Work Behaviors:

- Keeps the company's best interest in mind when considering or addressing issues.
- Dedication to attending work and work-related functions prepared and on time.
- Maintains a professional personal appearance.
- Strives for continuous self-improvement and for improvement of the business with respect to sales and service quality.

Physical Demands & Work Environment:

The physical demands and work environment characteristics described here are representative of those an employee encounters while performing the essential functions of this job. Reasonable accommodations may be made to enable individuals with disabilities to perform the essential functions.

- *Physical:* While performing the duties of this job, the employee is required to either stand and walk on a hard surface or drive a delivery vehicle and load or unload the truck for the majority of the workday. The employee is regularly required to reach with hands and arms, climb and balance; stoop, kneel, crouch, or crawl. The employee is frequently required to lift and carry and/or move up to 50 pounds, and occasionally required to lift up to 70 pounds. Specific vision abilities required by this job include close vision, color vision,

Job Description- Warehouse Supervisor

depth perception, and ability to adjust focus. The ability to speak and hear sufficiently to provide customer service is required. Prolonged periods standing at a desk and working on a computer.

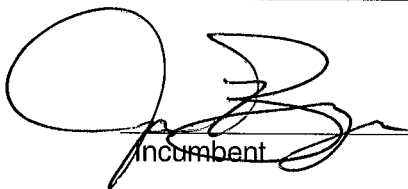
Store Environment: Medium to large store with shelves and bins, most work is performed with telephone, material handling equipment, computer, fax, printer, and in some cases an RF scanner.

Skills Summary:

Strong Supervisory Skills	Sales Aptitude
Energetic	Problem Solving Skills
Computer Skills	Interpersonal & Telephone Skills
Organization	Time Management
Math Aptitude	Oral Communications Skills
Reading Skills	Technical Skills
Written Communication Skills	Diplomacy
Mechanical Skills	Ability to lift to 70 pounds

The Warehouse Supervisor will maintain the strictest confidentiality on all corporate matters including, but not limited to marketing strategies, operational structures, pricing and all subjects that may have an adverse effect on the company in the marketplace if they were made known outside the company.

Approved:


Incumbent

10-05-21
Date

Supervisor

Date

Employee Information Form

Employer to Complete

Client Number H 1 J

Date 10/5/21

Select One ☒ New Employee
☐ Update Current Employee Information
☐ Rehire Previous Employee on Paychex System

Employee Number 836 Department Number Sales 141

Job Title Warehouse Supervisor

Hire Date 10/4/21

Birth Date 3/17/88

Workers' Compensation Class Code 7999 ☒ Full-time ☐ Part-time ☐ Seasonal

Salary (Per Pay Period) \$ 2500.00

OR

Hourly Rate 1 \$ _____ Hourly Rate 2 \$ _____ Hourly Rate 3 \$ _____

Payroll Frequency ☐ Weekly ☒ Bi-weekly ☐ Semi-monthly ☐ Monthly

Federal Exemptions 0 Additional \$ 0 Flat \$ 0

What state does this employee work in? NY

What state should be withholding for this employer? NY

State Exemptions 0 Additional \$ 0 Flat \$ 0

Are local taxes required? ☐ Yes - Town/City/County _____ ☒ No

Will direct deposit be sent to this employee? ☒ Yes ☐ No

Employee to Complete

Last Name Burgos First Name Jaime Initial _____

Address 416 Coleman Avenue County Monroe

City Spencerport State NY Zip Code 14559

Telephone Number (585) 210-6127 Sex ☒ Male ☐ Female

Work E-mail Address jaime.burgos@johnstonehvac-NY.com

Personal E-mail Address (optional) jaime.bu317@gmail.com

Marital Status ☐ Single ☐ Married ☐ Married, but Withhold at Higher Single Rate

Social Security Number 113-74-1652

Emergency Contact Information

Name Stacy Burgos Relationship wife

Emergency Telephone (585) 309-1268



Notice and Acknowledgement of Pay Rate and Payday
Under Section 195.1 of the New York State Labor Law
Notice for Exempt Employees

1. Employer Information

Name:

The KL Group, Inc.

Doing Business As (DBA) Name(s):

Johnstone Supply of Central NY
Johnstone Supply of Rochester
Johnstone Supply of Syracuse

FEIN (optional):

Physical Address:

77 Halstead St. Suite 3
Rochester, NY 14610

Mailing Address:

Same as Physical Address

Phone: 585-482-8000

3. Employee's pay rate(s): State if pay is based on an hourly, salary, day rate, piece rate, or other basis.
\$ 2,500.00 Salary

Employers may not pay a non-hourly rate to a non-exempt employee in the Hospitality Industry, except for commissioned salespeople.

4. Allowances taken:

☒ None

☐ Tips _____ per hour

☐ Meals _____ per meal

☐ Lodging _____

☐ Other _____

5. Regular payday: Friday _____

6. Pay is:

☐ Weekly

☒ Bi-weekly

☐ Other: _____

7. Overtime Pay Rate:

Most workers in NYS must receive at least 1½ times their regular rate of pay for all hours worked over 40 in a workweek, with few exceptions. A limited number of employees must only be paid overtime at 1½ times the minimum wage rate, or not at all.

This employee is exempt from overtime under the following exemption (optional):

8. Employee Acknowledgement:

On this day, I received notice of my pay rate, overtime rate (if eligible), allowances, and designated payday. I told my employer what my primary language is.

Check one:

☒ I have been given this pay notice in English because it is my primary language.

☐ My primary language is _____, I have been given this pay notice in English only, because the Department of Labor does not yet offer a pay notice form in my primary language.

Jaime Bourgeois
Print Employee Name

[Signature]
Employee Signature

Date 10-05-2021

Kenneth Livingston, President
Preparer Name and Title

The employee must receive a signed copy of this form. The employer must keep the original for 6 years.

Please note: It is unlawful for an employee to be paid less than an employee of the opposite sex for equal work. Employers also may not prohibit employees from discussing wages with their co-workers.

Employee's Withholding Certificate

OMB No. 1545-0074

2021

▶ **Complete Form W-4 so that your employer can withhold the correct federal income tax from your pay.**
▶ **Give Form W-4 to your employer.**
▶ **Your withholding is subject to review by the IRS.**

Step 1: Enter Personal Information	(a) First name and middle initial <u>Taine R.</u>	Last name <u>Burgos</u>	(b) Social security number <u>113-74-1652</u>
	Address <u>46 Coleman Avenue</u>		▶ Does your name match the name on your social security card? If not, to ensure you get credit for your earnings, contact SSA at 800-772-1213 or go to www.ssa.gov .
	City or town, state, and ZIP code <u>Spencerport, NY, 14559</u>		
	(c) ☐ Single or Married filing separately ☒ Married filing jointly or Qualifying widow(er) ☐ Head of household (Check only if you're unmarried and pay more than half the costs of keeping up a home for yourself and a qualifying individual.)		

Complete Steps 2-4 ONLY if they apply to you; otherwise, skip to Step 5. See page 2 for more information on each step, who can claim exemption from withholding, when to use the estimator at www.irs.gov/W4App, and privacy.

Step 2:
Multiple Jobs or Spouse Works

Complete this step if you (1) hold more than one job at a time, or (2) are married filing jointly and your spouse also works. The correct amount of withholding depends on income earned from all of these jobs.

Do **only one** of the following.

(a) Use the estimator at www.irs.gov/W4App for most accurate withholding for this step (and Steps 3-4); or

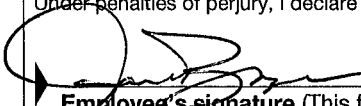
(b) Use the Multiple Jobs Worksheet on page 3 and enter the result in Step 4(c) below for roughly accurate withholding; or

(c) If there are only two jobs total, you may check this box. Do the same on Form W-4 for the other job. This option is accurate for jobs with similar pay; otherwise, more tax than necessary may be withheld ☐

TIP: To be accurate, submit a 2021 Form W-4 for all other jobs. If you (or your spouse) have self-employment income, including as an independent contractor, use the estimator.

Complete Steps 3-4(b) on Form W-4 for only ONE of these jobs. Leave those steps blank for the other jobs. (Your withholding will be most accurate if you complete Steps 3-4(b) on the Form W-4 for the highest paying job.)

Step 3: Claim Dependents	If your total income will be \$200,000 or less (\$400,000 or less if married filing jointly):		
	Multiply the number of qualifying children under age 17 by \$2,000 ▶ \$		
	Multiply the number of other dependents by \$500 ▶ \$		
	Add the amounts above and enter the total here	3	\$ <u>0</u>
Step 4 (optional): Other Adjustments	(a) Other income (not from jobs). If you want tax withheld for other income you expect this year that won't have withholding, enter the amount of other income here. This may include interest, dividends, and retirement income	4(a)	\$ <u>0</u>
	(b) Deductions. If you expect to claim deductions other than the standard deduction and want to reduce your withholding, use the Deductions Worksheet on page 3 and enter the result here	4(b)	\$ <u>0</u>
	(c) Extra withholding. Enter any additional tax you want withheld each pay period	4(c)	\$ <u>0</u>

Step 5: Sign Here	Under penalties of perjury, I declare that this certificate, to the best of my knowledge and belief, is true, correct, and complete.		
	 Employee's signature (This form is not valid unless you sign it.)		Date <u>10-05-2021</u>
Employers Only	Employer's name and address	First date of employment	Employer identification number (EIN)

General Instructions

Future Developments

For the latest information about developments related to Form W-4, such as legislation enacted after it was published, go to www.irs.gov/FormW4.

Purpose of Form

Complete Form W-4 so that your employer can withhold the correct federal income tax from your pay. If too little is withheld, you will generally owe tax when you file your tax return and may owe a penalty. If too much is withheld, you will generally be due a refund. Complete a new Form W-4 when changes to your personal or financial situation would change the entries on the form. For more information on withholding and when you must furnish a new Form W-4, see Pub. 505, Tax Withholding and Estimated Tax.

Exemption from withholding. You may claim exemption from withholding for 2021 if you meet both of the following conditions: you had no federal income tax liability in 2020 and you expect to have no federal income tax liability in 2021. You had no federal income tax liability in 2020 if (1) your total tax on line 24 on your 2020 Form 1040 or 1040-SR is zero (or less than the sum of lines 27, 28, 29, and 30), or (2) you were not required to file a return because your income was below the filing threshold for your correct filing status. If you claim exemption, you will have no income tax withheld from your paycheck and may owe taxes and penalties when you file your 2021 tax return. To claim exemption from withholding, certify that you meet both of the conditions above by writing "Exempt" on Form W-4 in the space below Step 4(c). Then, complete Steps 1(a), 1(b), and 5. Do not complete any other steps. You will need to submit a new Form W-4 by February 15, 2022.

Your privacy. If you prefer to limit information provided in Steps 2 through 4, use the online estimator, which will also increase accuracy.

As an alternative to the estimator: if you have concerns with Step 2(c), you may choose Step 2(b); if you have concerns with Step 4(a), you may enter an additional amount you want withheld per pay period in Step 4(c). If this is the only job in your household, you may instead check the box in Step 2(c), which will increase your withholding and significantly reduce your paycheck (often by thousands of dollars over the year).

When to use the estimator. Consider using the estimator at www.irs.gov/W4App if you:

1. Expect to work only part of the year;
2. Have dividend or capital gain income, or are subject to additional taxes, such as Additional Medicare Tax;
3. Have self-employment income (see below); or
4. Prefer the most accurate withholding for multiple job situations.

Self-employment. Generally, you will owe both income and self-employment taxes on any self-employment income you receive separate from the wages you receive as an employee. If you want to pay these taxes through withholding from your wages, use the estimator at www.irs.gov/W4App to figure the amount to have withheld.

Nonresident alien. If you're a nonresident alien, see Notice 1392, Supplemental Form W-4 Instructions for Nonresident Aliens, before completing this form.

Specific Instructions

Step 1(c). Check your anticipated filing status. This will determine the standard deduction and tax rates used to compute your withholding.

Step 2. Use this step if you (1) have more than one job at the same time, or (2) are married filing jointly and you and your spouse both work.

Option (a) most accurately calculates the additional tax you need to have withheld, while option (b) does so with a little less accuracy.

If you (and your spouse) have a total of only two jobs, you may instead check the box in option (c). The box must also be checked on the Form W-4 for the other job. If the box is checked, the standard deduction and tax brackets will be cut in half for each job to calculate withholding. This option is roughly accurate for jobs with similar pay; otherwise, more tax than necessary may be withheld, and this extra amount will be larger the greater the difference in pay is between the two jobs.



Multiple jobs. Complete Steps 3 through 4(b) on only one Form W-4. Withholding will be most accurate if you do this on the Form W-4 for the highest paying job.

Step 3. This step provides instructions for determining the amount of the child tax credit and the credit for other dependents that you may be able to claim when you file your tax return. To qualify for the child tax credit, the child must be under age 17 as of December 31, must be your dependent who generally lives with you for more than half the year, and must have the required social security number. You may be able to claim a credit for other dependents for whom a child tax credit can't be claimed, such as an older child or a qualifying relative. For additional eligibility requirements for these credits, see Pub. 972, Child Tax Credit and Credit for Other Dependents. You can also include **other tax credits** in this step, such as education tax credits and the foreign tax credit. To do so, add an estimate of the amount for the year to your credits for dependents and enter the total amount in Step 3. Including these credits will increase your paycheck and reduce the amount of any refund you may receive when you file your tax return.

Step 4 (optional).

Step 4(a). Enter in this step the total of your other estimated income for the year, if any. You shouldn't include income from any jobs or self-employment. If you complete Step 4(a), you likely won't have to make estimated tax payments for that income. If you prefer to pay estimated tax rather than having tax on other income withheld from your paycheck, see Form 1040-ES, Estimated Tax for Individuals.

Step 4(b). Enter in this step the amount from the Deductions Worksheet, line 5, if you expect to claim deductions other than the basic standard deduction on your 2021 tax return and want to reduce your withholding to account for these deductions. This includes both itemized deductions and other deductions such as for student loan interest and IRAs.

Step 4(c). Enter in this step any additional tax you want withheld from your pay **each pay period**, including any amounts from the Multiple Jobs Worksheet, line 4. Entering an amount here will reduce your paycheck and will either increase your refund or reduce any amount of tax that you owe.



Department of Taxation and Finance

Employee's Withholding Allowance Certificate

New York State • New York City • Yonkers

IT-2104

First name and middle initial <u>Jaine R</u>		Last name <u>Burgos</u>	Your Social Security number <u>113-74-1652</u>
Permanent home address (number and street or rural route) <u>46 Coleman Avenue</u>		Apartment number	Single or Head of household ☐ Married ☐
City, village, or post office <u>Spencerport</u>		State <u>NY</u>	Married, but withhold at higher single rate ☐
		ZIP code <u>14559</u>	Note: If married but legally separated, mark an X in the Single or Head of household box.
Are you a resident of New York City? Yes ☐ No ☒			
Are you a resident of Yonkers? Yes ☐ No ☒			
Complete the worksheet on page 4 before making any entries.			
1 Total number of allowances you are claiming for New York State and Yonkers, if applicable (from line 19)			1 <u>0</u>
2 Total number of allowances for New York City (from line 31)			2 <u>0</u>
Use lines 3, 4, and 5 below to have additional withholding per pay period under special agreement with your employer.			
3 New York State amount			3 <u>0</u>
4 New York City amount			4 <u>0</u>
5 Yonkers amount			5 <u>0</u>

I certify that I am entitled to the number of withholding allowances claimed on this certificate.

Employee's signature

Date

10-05-2021

Penalty – A penalty of \$500 may be imposed for any false statement you make that decreases the amount of money you have withheld from your wages. You may also be subject to criminal penalties.

Employee: detach this page and give it to your employer; keep a copy for your records.**Employer: Keep this certificate with your records.**

Mark an X in box A and/or box B to indicate why you are sending a copy of this form to New York State (see instructions):

A Employee claimed more than 14 exemption allowances for NYS A ☐B Employee is a new hire or a rehire ... B ☐ First date employee performed services for pay (mm-dd-yyyy) (see instr.):Are dependent health insurance benefits available for this employee? Yes ☐ No ☐

If Yes, enter the date the employee qualifies (mm-dd-yyyy):

Employer's name and address (Employer: complete this section only if you are sending a copy of this form to the NYS Tax Department.)	Employer identification number

Instructions**Changes effective for 2021**

Form IT-2104 has been revised for tax year 2021. The worksheet on page 4 and the charts beginning on page 5, used to compute withholding allowances or to enter an additional dollar amount on line(s) 3, 4, or 5, have been revised. If you previously filed a Form IT-2104 and used the worksheet or charts, you should complete a new 2021 Form IT-2104 and give it to your employer.

Who should file this form

This certificate, Form IT-2104, is completed by an employee and given to the employer to instruct the employer how much New York State (and New York City and Yonkers) tax to withhold from the employee's pay. The more allowances claimed, the lower the amount of tax withheld.

If the federal Form W-4 you most recently submitted to your employer was for tax year 2019 or earlier, and you did not file Form IT-2104, your employer may use the same number of allowances you claimed on your federal Form W-4. Due to differences in federal and New York State tax law, this may result in the wrong amount of tax withheld for New York State, New York City, and Yonkers.

For tax years 2020 or later, withholding allowances are no longer reported on federal Form W-4. Therefore, if you submit a federal Form W-4 to your

employer for tax year 2020 or later, and you do not file Form IT-2104, your employer may use zero as your number of allowances. This may result in the wrong amount of tax withheld for New York State, New York City, and Yonkers.

Complete Form IT-2104 each year and file it with your employer if the number of allowances you may claim is different from federal Form W-4 or has changed. Common reasons for completing a new Form IT-2104 each year include the following:

- You started a new job.
- You are no longer a dependent.
- Your individual circumstances may have changed (for example, you were married or have an additional child).
- You moved into or out of NYC or Yonkers.
- You itemize your deductions on your personal income tax return.
- You claim allowances for New York State credits.
- You owed tax or received a large refund when you filed your personal income tax return for the past year.
- Your wages have increased and you expect to earn \$107,650 or more during the tax year.

- The total income of you and your spouse has increased to \$107,650 or more for the tax year.
- You have significantly more or less income from other sources or from another job.
- You no longer qualify for exemption from withholding.
- You have been advised by the Internal Revenue Service that you are entitled to fewer allowances than claimed on your original federal Form W-4 (submitted to your employer for tax year 2019 or earlier), and the disallowed allowances were claimed on your original Form IT-2104.
- You are a covered employee of an employer that has elected to participate in the Employer Compensation Expense Program.

Exemption from withholding

You cannot use Form IT-2104 to claim exemption from withholding. To claim exemption from income tax withholding, you **must** file Form IT-2104-E, *Certificate of Exemption from Withholding*, with your employer. You must file a new certificate each year that you qualify for exemption. This exemption from withholding is allowable only if you had no New York income tax liability in the prior year, you expect none in the current year, **and** you are over 65 years of age, under 18, or a full-time student under 25. You may also claim exemption from withholding if you are a military spouse and meet the conditions set forth under the Servicemembers Civil Relief Act as amended by the Military Spouses Residency Relief Act and the Veterans Benefits and Transition Act. If you are a dependent who is under 18 or a full-time student, you may owe tax if your income is more than \$3,100.

Withholding allowances

You may **not** claim a withholding allowance for yourself or, if married, your spouse. Claim the number of withholding allowances you compute in Part 1 and Part 4 of the worksheet on page 4. If you want more tax withheld, you may claim fewer allowances. **If you claim more than 14 allowances**, your employer must send a copy of your Form IT-2104 to the New York State Tax Department. You may then be asked to verify your allowances. If you arrive at negative allowances (less than zero) on lines 1 or 2 and your employer cannot accommodate negative allowances, **enter 0** and see *Additional dollar amount(s)* below.

Income from sources other than wages – If you have more than \$1,000 of income from sources other than wages (such as interest, dividends, or alimony received), reduce the number of allowances claimed on line 1 and line 2 (if applicable) of the IT-2104 certificate by one for each \$1,000 of nonwage income. If you arrive at negative allowances (less than zero), see *Withholding allowances* above. You may also consider making estimated tax payments, especially if you have significant amounts of nonwage income. Estimated tax requires that payments be made by the employee directly to the Tax Department on a quarterly basis. For more information, see the instructions for Form IT-2105, *Estimated Tax Payment Voucher for Individuals*, or see *Need help?* on page 7.

Other credits (Worksheet line 14) – If you will be eligible to claim any credits other than the credits listed in the worksheet, such as an investment tax credit, you may claim additional allowances.

Find your filing status and your New York adjusted gross income (NYAGI) in the chart below, and divide the amount of the expected credit by the number indicated. Enter the result (rounded to the nearest whole number) on line 14.

Single and NYAGI is:	Head of household and NYAGI is:	Married and NYAGI is:	Divide amount of expected credit by:
Less than \$215,400	Less than \$269,300	Less than \$323,200	65
Between \$215,400 and \$1,077,550	Between \$269,300 and \$1,616,450	Between \$323,200 and \$2,155,350	68
Over \$1,077,550	Over \$1,616,450	Over \$2,155,350	88

Example: You are married and expect your New York adjusted gross income to be less than \$323,200. In addition, you expect to receive a flow-through of an investment tax credit from the S corporation of which you are a shareholder. The investment tax credit will be \$160. Divide the expected credit by 65. $160/65 = 2.4615$. The additional withholding allowance(s) would be 2. Enter 2 on line 14.

Married couples with both spouses working – If you and your spouse both work, you should each file a separate IT-2104 certificate with your respective employers. Your withholding will better match your total tax if the higher wage-earning spouse claims all of the couple's allowances and the lower wage-earning spouse claims zero allowances. **Do not** claim more total allowances than you are entitled to. If your combined wages are:

- less than \$107,650, you should each mark an **X** in the box *Married, but withhold at higher single rate* on the certificate front, and divide the total number of allowances that you compute on line 19 and line 31 (if applicable) between you and your working spouse.
- \$107,650 or more, use the chart(s) in Part 5 and enter the additional withholding dollar amount on line 3.

Taxpayers with more than one job – If you have more than one job, file a separate IT-2104 certificate with each of your employers. Be sure to claim only the total number of allowances that you are entitled to. Your withholding will better match your total tax if you claim all of your allowances at your higher-paying job and zero allowances at the lower-paying job. In addition, to make sure that you have enough tax withheld, if you are a single taxpayer or head of household with two or more jobs, and your combined wages from all jobs are under \$107,650, reduce the number of allowances by seven on line 1 and line 2 (if applicable) on the certificate you file with your higher-paying job employer. If you arrive at negative allowances (less than zero), see *Withholding allowances* above.

If you are a single or a head of household taxpayer, and your combined wages from all of your jobs are between \$107,650 and \$2,263,265, use the chart(s) in Part 6 and enter the additional withholding dollar amount from the chart on line 3.

If you are a married taxpayer, and your combined wages from all of your jobs are \$107,650 or more, use the chart(s) in Part 5 and enter the additional withholding dollar amount from the chart on line 3 (Substitute the words *Higher-paying job* for *Higher earner's wages* within the chart).

Dependents – If you are a dependent of another taxpayer and expect your income to exceed \$3,100, you should reduce your withholding allowances by one for each \$1,000 of income over \$2,500. This will ensure that your employer withholds enough tax.

Following the above instructions will help to ensure that you will not owe additional tax when you file your return.

Heads of households with only one job – If you will use the head-of-household filing status on your state income tax return, mark the *Single or Head of household* box on the front of the certificate. If you have only one job, you may also wish to claim two additional withholding allowances on line 15.

Additional dollar amount(s)

You may ask your employer to withhold an additional dollar amount each pay period by completing lines 3, 4, and 5 on Form IT-2104. In most instances, if you compute a negative number of allowances and your employer cannot accommodate a negative number, for each negative allowance claimed you should have an additional \$1.85 of tax withheld per week for New York State withholding on line 3, and an additional \$0.80 of tax withheld per week for New York City withholding on line 4. Yonkers residents should use 16.75% (.1675) of the New York State amount for additional withholding for Yonkers on line 5.

Note: If you are requesting your employer to withhold an additional dollar amount on lines 3, 4, or 5 of this allowance certificate, the additional dollar amount, as determined by these instructions or by using the chart(s) in Part 5 or Part 6, is accurate for a weekly payroll. Therefore, if you are not paid on a weekly basis, you will need to adjust the dollar amount(s) that you compute. For example, if you are paid biweekly, you must double the dollar amount(s) computed.

Avoid underwithholding

Form IT-2104, together with your employer's withholding tables, is designed to ensure that the correct amount of tax is withheld from your pay. If you fail to have enough tax withheld during the entire year, you may owe a large tax liability when you file your return. The Tax Department must assess interest and may impose penalties in certain situations in addition to the tax liability. Even if you do not file a return, we may determine that you owe personal income tax, and we may assess interest and penalties on the amount of tax that you should have paid during the year.

POST-OFFER SELF-IDENTIFICATION FORM

Name: Jaime Burgos Date: 10-05-2021

Johnstone Supply is an Equal Opportunity Employer committed to the policies and principles of Non-Discrimination and Affirmative Action.

GENDER: (Check one)

☒ Male ☐ Female

RACE/ETHNICITY:

Are you Hispanic or Latino? Yes ☒ No ☐

If you answered "No" to the question "Are you Hispanic or Latino?" please check the applicable race box (check one):

- | | |
|---|--|
| ☒ White (Not Hispanic or Latino) | ☐ American Indian or Alaska Native (Not Hispanic or Latino) |
| ☐ Asian (Not Hispanic or Latino) | ☐ Native Hawaiian or Other Pacific Islander (Not Hispanic or Latino) |
| ☐ Black or African American (Not Hispanic or Latino) | ☐ Two or More Races – All persons who identify with more than one of the above five races. (Not Hispanic or Latino) |

If you selected "Two or More Races" please identify the race with which you primarily identify:

- | | |
|---|---|
| ☐ White (Not Hispanic or Latino) | ☐ American Indian or Alaska Native (Not Hispanic or Latino) |
| ☐ Asian (Not Hispanic or Latino) | ☐ Native Hawaiian or Other Pacific Islander (Not Hispanic or Latino) |
| ☐ Black or African American (Not Hispanic or Latino) | |

VETERAN STATUS: (Check all that apply)

- ☒ I am **not** a veteran under any of the categories below. **OR** I am **not** a veteran of the U.S. Armed Forces.
- ☐ I am a **Disabled Veteran** – (1) A veteran of the U.S. military, ground, naval or air service who is entitled to compensation (or who but for the receipt of military retired pay would be entitled to compensation) under laws administered by the Secretary of Veterans Affairs, or (2) A person who was discharged or released from active duty because of a service-connected disability.
- ☐ I am a **Recently Separated Veteran** – Any veteran during the three-year period beginning on the date of such veteran's discharge or release from active duty in the U.S. military service.

Enter Date of Separation: _____

- ☐ I am an **Armed Forces Service Medal Veteran** – Any veteran who, while serving on active duty in the U.S. military, ground, naval or air service, participated in a United States military operation for which an Armed Forces service medal was awarded pursuant to Executive Order 12985.
- ☐ I am an **Other Protected Veteran** – A veteran who served on active duty in the U.S. military, ground, naval or air service during a war or in a campaign or expedition for which a campaign badge has been authorized, under the laws administered by the Department of Defense.

Employee Name: Jaime Burgos

Company Name: Johnstone

EMPLOYEE DIRECT DEPOSIT AUTHORIZATION AGREEMENT

(Please Complete One Form for Each Deposit Request)

I hereby authorize and request ADP, Inc. hereinafter called ADP, to make payment of any amounts owing to me by initiating credit entries to my account indicated below in the bank named below, hereinafter called BANK, and I authorize and request BANK to accept any credit entries initiated by ADP to such account and to credit the same to such account without responsibility for the correctness thereof.

I authorize and request ADP to effect repayment to ADP for amounts owed it because of a prior erroneous credit initiated to my account.

I further understand that funds will be posted to my account no earlier than check date and that I will not draw funds against my account until I have confirmed that expected funds have been posted to my account.

It is understood that this agreement may be terminated by me at any time by written notification to ADP or BANK. Any such notification to ADP shall be effective only with respect to entries initiated by ADP after receipt of such notification and a reasonable opportunity to act on it. Any such notification to BANK shall be effective only with respect to entries credited to my account by BANK after receipt of such notification and a reasonable time to act on it.

I recognize, acknowledge and accept this service is being provided for my convenience. As such, I agree to hold ADP, their agents, each participating bank and NACHA harmless from any claim incident to the operation of this plan, arising from any act or omission by ADP, their agents and their employees, including without limitation any claim based on alleged loss as a result of non-credit of any deposit, and any claim which may be made by any depositor as a result of the rejection of any of his/her debits because of insufficient funds arising from the failure to credit deposits to his/her account.

ATTACH VOIDED CHECK OR BANK LETTER AS PROOF OF ACCOUNT NUMBER AND ROUTING TRANSIT NUMBER

In the absence of a voided check or bank letter, I attest that the information below is accurate and reliable.

Routing #: 022300173 Account #: ~~555555~~ 000000784974750

Account Type: (Select Only One)

☒ Checking

☐ Savings

☐ Checking (HSA) Single

☐ Checking (HSA) Family

Deposit Options: (Select Only One)

☒ Deposit ENTIRE Net Pay Amount

☐ Deposit \$ _____ of Net Pay Each Pay Period

☐ Deposit _____ % of Net Pay Each Pay Period

☐ Cancel Direct Deposit

For virtual delivery of pay stubs with Net Direct Deposit:

Email address: jaime.bu317@gmail.com

Employee Signature: Jaime Burgos

Date: 10-05-2021

(Please Complete One Form for Each Deposit Request)



2021 Benefits Overview * Employee

Benefit	Description	Employee Contribution	Vestment Period
Health Insurance <i>(Premium Only Plan – Section 125)</i>	Excellus SimplyBlue Plus Gold 6 Company covers 50% of the equivalent Silver 19 premium cost and provides a Health Reimbursement Account (HRA) in the amount of \$1,400 single/\$4,300 family	Balance of premium costs <u>not</u> covered by the Company plus applicable out of pocket annual maximum of \$3,200 single/ \$6,400 family less employer provided HRA	Upon the completion of ninety (90) days
	Excellus SimplyBlue Silver 19 Company covers 50% of the premium cost and provides an HRA in the amount of \$2,250 single/\$5,500 family	50% of the premium costs plus co-pays up to annual out of pocket maximum of \$6,750 single/ \$13,500 family less supplemental employer provided	Upon the completion of ninety (90) days
	Excellus SimplyBlue Plus Bronze 4 Company covers 50% of the premium cost and provides an HRA in the amount of \$2,250 single/\$5,500 family	50% of the premium costs plus applicable out of pocket annual maximum of \$7,000 single/ \$14,000 family less employer provided HRA	Upon the completion of ninety (90) days
Health Club Allowance	Company will pay 25% of annual dues to a maximum of \$100/year towards an active membership in a health club subject to prior approval	Any portion over company contribution	Upon the completion of ninety (90) days
Employee Assistance Program (EAP)	NextGen EAP a fully integrated work/life Employee Assistance Program (EAP), designed to help effectively balance the competing demands of work and life before personal problems affect professional performance	N/A	Upon the completion of ninety (90) days
Flexible Spending Account <i>(Section 125-offered through Benefit Resource Inc.)</i>	Flexible Spending Accounts are IRS-approved pre-tax accounts to help pay out-of-pocket medical, dental, vision, prescription drug and dependent care expenses not covered by other company insurance benefits	Voluntary contribution up to \$2,650 annually for medical; \$5,000 dependent care deduction	Upon the completion of ninety (90) days
Supplemental Short-Term Disability <i>(offered through AFLAC)</i>	Provides earnings coverage for up to 6 months of Temporary Disability when unable to work <i>This benefit supplements coverage for which you are entitled under NYS Disability Law</i>	100%	First of the month following ninety (90) days

Rochester
Syracuse
Lyons



Personal Accident Insurance (Premium Only Plan- Section 125) offered through AFLAC	Pre-tax coverage for benefits payable to you and/or your family in the event of an injury caused by a covered accident including but not limited to travel costs, doctor/hospital visits and physical therapy, etc.	100%	First of the month following ninety (90) days
Personal Cancer Insurance (Premium Only Plan- Section 125) offered through AFLAC	Pre-tax coverage for benefits payable to you and/or your family in the event of a first occurrence determination of cancer Benefits paid to you for use at your discretion to cover expenditures over and above those provided by major medical	100%	First of the month following ninety (90) days
Dental & Vision Insurance (Premium Only Plan- Section 125- offered through Guardian)	Pre-tax coverage of dental and vision expenditures for you and/or your family	100%	Upon the completion of ninety (90) days
Group Term Life Insurance and AD&D Coverage (offered through Mutual of Omaha)	Life insurance coverage for you of \$50,000 Accidental Death & Dismemberment coverage for you of \$50,000. You can elect supplemental term life insurance in increments of \$10,000 up to a maximum of 5 times your annual salary	100% for supplemental term life coverage Spousal and Child(ren) insurance available	First of the month following ninety (90) days
National Holidays	6 paid days annually; New Year's Day, Memorial Day, Independence Day, Labor Day, Thanksgiving Day, Christmas Day	N/A	None
Paid Time Off	10 Days per year - weeks are not to be taken consecutively	N/A	First of the month following six (6) months service, prorated during first year of employment
	Additional 11 th PTO day in recognition of your birthday; to be used during the month of your birthday	N/A	11 th PTO day eligible after 3 years of service

Rochester
Syracuse
Lyons



PTO @ 5 Years	Additional 4 days of PTO in recognition of your years of service	N/A	Four (4) additional days of PTO eligible after five (5) years of service
NY Paid Sick Leave	40 hours of Paid Sick Leave annually	N/A	Accrual of one (1) hour of Paid Sick Leave for every thirty (30) hours worked
Tuition Reimbursement [†]	Company will pay up to 100% of tuition for job-related courses subject to prior approval	Any portion over company contribution.	One (1) year
Savings and Investment Plan	401K defined contribution plan		One (1) year, over 21 years of age, and works more than 1000 hours per year
	Company invests on behalf of each employee a percentage of annual gross wages for all plan-eligible employees in accordance with the following schedule:		
	Employee Contribution	Employer Match	
	1%	1%	
	2%	2%	
	3%	3%	
	4%	3.5%	
	5%	4%	
		Deferral of up to 25% of annual gross wages but not to exceed \$19,500	
		Additional \$6,500 catch-up contribution for employees aged 50 and over	
		Pre-tax and after-tax (Roth) programs available.	

* These benefits do not constitute a contract with the employee and may be subject to change without notice.

[†] Subject to prior approval. Employee must achieve a minimum grade point average. Actual percentage is at the discretion of management.

NOTE: All Johnstone Supply employees are employed at will

I have received a copy of this document.

**Rochester
Syracuse
Lyons**

Employee Signature

Name of Employee (please print)

Jaime Burgal

Date

10-05-2021

Acknowledgment of Receipt and Review

By signing below, I acknowledge that I have received a copy of Johnstone Supply of Central NY's Employee Handbook (handbook) and that I have read it, understand it, and agree to comply with it. I understand that JSCNY has the maximum discretion permitted by law to interpret, administer, change, modify, or delete the rules, regulations, procedures, and benefits contained in the handbook at any time with or without notice. No statement or representation by a supervisor, supervisor, or any other employee, whether oral or written, can supplement or modify this handbook. Changes can only be made if approved in writing by the President of JSCNY. I also understand that any delay or failure by JSCNY to enforce any rule, regulation, or procedure contained in the handbook does not constitute a waiver on behalf of JSCNY or effect the right of JSCNY to enforce such rule, regulation, or procedure in the future.

I understand that neither this handbook nor any other communication by a management representative or other, whether oral or written, is intended in any way to create a contract of employment. I further understand that, unless I have a written employment agreement signed by an authorized JSCNY representative, I am employed "at-will" (to the extent permitted by law) and this handbook does not modify my "at-will" employment status.

If I am covered by a written employment agreement signed by the President or a collective-bargaining agreement that conflicts with the terms of this handbook, I understand that the terms of the employment agreement or collective-bargaining agreement will control.

This handbook is not intended to preclude or dissuade employees from engaging in legally protected activities under the National Labor Relations Act (NLRA).

This handbook supersedes any previous handbook or policy statements, whether written or oral, issued by Johnstone Supply of Central NY.

If I have any questions about the content or interpretation of this handbook, I will contact my supervisor.



Signature

10-05-2021

Date

Jaime Burgos

Print Name

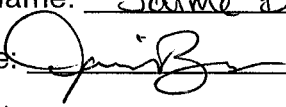
Receipt of Non-Harassment Policy

It is Johnstone Supply of Central NY's policy to prohibit intentional and unintentional harassment of any individual by another person on the basis of any protected classification including, but not limited to, race, color, national origin, disability, religion, marital status, veteran status, sexual orientation or age. The purpose of this policy is not to regulate our employees' personal morality, but to ensure that in the workplace, no one harasses another individual.

If an employee feels that he or she has been subjected to conduct which violates this policy, he or she should immediately report the matter to the Controller. If the employee is unable for any reason to contact this person, or if the employee has not received a satisfactory response within five (5) business days after reporting any incident of what the employee perceives to be harassment, the employee should contact the President. If the person toward whom the complaint is directed is one of the individuals indicated above, the employee should contact any higher-level manager in his or her reporting hierarchy. Every report of perceived harassment will be fully investigated and corrective action will be taken where appropriate. All complaints will be kept confidential to the extent possible, but confidentiality cannot be guaranteed. In addition, the Company will not allow any form of retaliation against individuals who report unwelcome conduct to management or who cooperate in the investigations of such reports in accordance with this policy. If an employee feels he or she has been subjected to any such retaliation, he or she should report it in the same manner in which the employee would report a claim of perceived harassment under this policy. Violation of this policy including any improper retaliatory conduct will result in disciplinary action, up to and including discharge. All employees must cooperate with all investigations.

I have read and I understand Johnstone Supply of Central NY's Non-Harassment Policy.

Employee's Printed Name: Jaime Burgos

Employee's Signature: 

Position: Supervisor

Date: 10-05-2021

The signed original copy of this receipt should be given to management - it will be filed in your personnel file.



JOHNSTONE SUPPLY

Sexual Harassment Prevention

Rochester: 95 Halstead Street, 14610
Toll Free: (800) 724-8806
Tel: (585) 482-8000 • Fax: (585) 482-6000
eMail: store141@johnstonesupply.com

Syracuse: 835 Canal Street, 13210
Toll Free: (877) 724-8806
Tel: (315) 479-8800 • Fax: (315) 479-8600
eMail: store269@johnstonesupply.com

Order on-line at www.JohnstoneSupply.com/141

example, employees who work in New York City may file complaints of sexual harassment with the New York City Commission on Human Rights. Contact their main office at Law Enforcement Bureau of the NYC Commission on Human Rights, 40 Rector Street, 10th Floor, New York, New York; call 311 or (212) 306-7450; or visit www.nyc.gov/html/cchr/html/home/home.shtml.

Contact the Local Police Department

If the harassment involves unwanted physical touching, coerced physical confinement or coerced sex acts, the conduct may constitute a crime. Contact the local police department.

Employee Signature: *Jaime Burgos*

Print Name: Jaime Burgos

Date: 10-05-2021



JOHNSTONE SUPPLY

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Order on-line at www.JohnstoneSupply.com/141

Smoke and Vape-Free Workplace Policy

Introduction

Johnstone Supply of CNY is committed to providing a safe and healthy workplace and to promoting the health and well-being of its employees. As such, the following policy has been adopted and applies to all employees of Johnstone Supply of CNY.

Policy

It is the policy of Johnstone Supply of CNY to prohibit smoking and vaping on all company premises to provide a safe and healthy work environment for all employees. Smoking is defined as the "act of lighting, smoking or carrying a lighted or smoldering cigar, cigarette or pipe of any kind." Vaping refers to the use of electronic nicotine delivery systems or electronic smoking devices such as e-cigarettes, e-pipes, e-hookahs and e-cigars.

Scope

This policy applies to:

- All areas of buildings occupied by company employees.
- All company-sponsored offsite conferences and meetings.
- All vehicles owned or leased by the company.
- All company employees.
- All visitors (customers and vendors) to company premises.
- All contractors and consultants and/or their employees working on company premises.
- All temporary employees.
- All student interns.

Smoking and vaping are permitted *only* in the following designated outdoor areas:

side door - parking lot



JOHNSTONE SUPPLY

Rochester: 95 Halstead Street, 14610
Toll Free: (800) 724-8806
Tel: (585) 482-8000 • Fax: (585) 482-6000
eMail: store141@johnstonesupply.com

Syracuse: 835 Canal Street, 13210
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Order on-line at www.JohnstoneSupply.com/141

Procedures

Employees who violate this policy will be subject to disciplinary action up to and including immediate discharge.

A process is in place for resolving complaints about the smoke- and vape-free policy:

- Complaints about the application of this policy should be brought to the attention of the Human Resources, Controller or the President for resolution.
- The complaint should be submitted in writing and should identify specific objections.
- Johnstone Supply of CNY will investigate the complaint and resolve it in accordance with the policy.

No employee shall suffer any form of retaliation for raising a complaint or asking a question about this policy.

This policy is intended to comply with the requirements of [title of ordinance].

Statement of Understanding

I have read and fully understand the terms of this policy.

I understand that any violation of this policy will result in disciplinary action up to and including immediate discharge.

I understand that Johnstone Supply of CNY reserves the right to make changes to this policy as needed.

Jaime Burgos

Employee Name

Jaime Burgos

Employee Signature

10-05-2021

Date



JOHNSTONE SUPPLY

Rochester: 95 Halstead Street, 14610
Toll Free: (800) 724-8806
Tel: (585) 482-8000 • Fax: (585) 482-6000
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Tel: (315) 479-8800 • Fax: (315) 479-8600
eMail: store269@johnstonesupply.com

Order on-line at www.JohnstoneSupply.com/141

AUTHORIZATION TO DEDUCT EXPENSES

As a benefit of employment, you are accorded the opportunity to purchase product out of the catalog of **JOHNSTONE SUPPLY** at the cost prevailing at time of purchase. Unless authorized, purchases are intended for personal or immediate family use only.

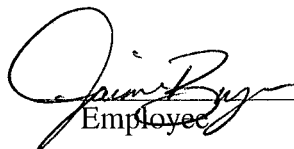
In addition, you will automatically be set up with a credit limit allowing you to charge purchases with net 30-day terms. Having this benefit will allow you to use **JOHNSTONE SUPPLY of Central NY [Rochester/Syracuse]** as a credit reference when applying for credit elsewhere. Your credit limit will be reviewed periodically and adjusted accordingly.

Obviously, abuse of this privilege puts this benefit at risk for you. Payment of obligations beyond terms and without previous authorized consent will suspend your benefit. Upon termination of employment, this benefit is voided, and all outstanding obligations are immediately due. Finance charges and collection expenses, if any, may also apply.

Since this is a benefit and a privilege of employment with **JOHNSTONE SUPPLY of Central NY** you are not obligated to use it, however, should you wish to take advantage of this unique opportunity you are asked to authorize the company to collect past due expenses by payroll deduction.

* * * *

I have read the information above and do hereby authorize **The KL Group, Inc., d/b/a JOHNSTONE SUPPLY of Central NY [Rochester/Syracuse]** the right to deduct any past due expenditures for company services or products acquired during the course of my employment for personal use from my paycheck.


Employee

10-05-2021
Date

I have read the information above and do **not** wish to partake of the benefit offered to me.

Employee

Date



JOHNSTONE SUPPLY

Rochester: 95 Halstead Street, 14610
Toll Free: (800) 724-8806
Tel: (585) 482-8000 • Fax: (585) 482-6000
eMail: store141@johnstonesupply.com

Syracuse: 835 Canal Street, 13210
Toll Free: (877) 724-8806
Tel: (315) 479-8800 • Fax: (315) 479-8600
eMail: store269@johnstonesupply.com

Order on-line at www.JohnstoneSupply.com/141

EMPLOYEE ACCOUNT APPLICATION

Employee Name: Jaime Burgos

Address: 46 Coleman Avenue

Address 2: _____

City/ST/Zip: Spencerport NY 14559

County: Monroe

Phone: 585-216-6127 **Fax #:** _____

Cell #: _____ **Other #:** _____

Email Address: jaimelb317@gmail.com

I, Jaime Burgos SS# 113-74-1652

OR Driver's License # _____

I hereby personally guarantee to you, Johnstone Supply of CNY, any obligation of the above named Employee and/or its successor. I also agree to bind myself to pay you on demand any sum, which may become due to you by the above named Employee, whenever the above named Employee fails to pay the same. If credit is granted, I agree to pay within established terms. If payment is not made within terms, I agree to pay all service charges. In the event this account is referred amount of twenty-five percent of the principal amount. If suit or action by an attorney amount of twenty-five percent of the principal amount. If suit or action by an attorney for collections, I agree to pay cost of collection equal to a minimum is instituted, I promise to pay attorney fees in said suit or action. Venue shall be in the state and county of Johnstone Supply's choice. Applicant specifically understands that they are waiving their right in choice of venue. Applicant agrees to pay interest and service charges at the highest rate permitted by law.

Signed: Jaime Burgos

Date: 10-05-2021

"National Supplier to the Service Industry Since 1953"

